
COMMERCIAL LICENSE AGREEMENT

For KodaHosting
Companion to the GNU GPL v3

This Agreement allows commercial entities to use KodaHosting software without being subject to the copyleft obligations of the GNU GPL v3, in exchange for the payment of a commercial license fee.

Licensors: Karol Brzostowski / KodaHosting
Fixberg 17, 33106 Paderborn-Wewer, Deutschland
contact@kodaserv.eu
<https://host.kodanetwork.eu>
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Commercial inquiries: contact@kodaserv.eu

Commercial License Agreement

Companion to the GNU General Public License v3 (GPL v3)

This document is the **Commercial License Agreement** that allows commercial entities to use this software without being bound by the copyleft obligations of the GNU General Public License v3 (GPL v3).

How This Works

This software is **dual-licensed**:

- 1 GPL v3 (free, with copyleft)**, anyone can use the software for free, but if you modify and distribute it, you must release your modifications under GPL v3 as well.
- 1 Commercial License (paid, no copyleft)**, commercial entities can pay for a Commercial License that allows them to use, modify, and distribute the software WITHOUT having to release their own source code under GPL v3.

You only need a Commercial License if you want to use this software in a product WITHOUT releasing your own source code under GPL v3.

COMMERCIAL LICENSE AGREEMENT

This Commercial License Agreement (the "**Agreement**") is entered into as of the Effective Date set out in the Order Form below by and between:

Licensor: Karol Brzostowski / KodaHosting Fixberg 17, 33106 Paderborn-Wewer, Deutschland
contact@kodaserv.eu (Einzelperson, keine USt-IdNr.)

and

Licensee: [Legal name of Commercial Entity] Fixberg 17, 33106 Paderborn-Wewer, Deutschland [Email of authorized signatory] (Einzelperson) [Name and title of authorized signatory]

1. Background

1.1 The Licensor is the copyright holder of the software known as **KodaHosting** (the "**Software**"), which the Licensor offers to the public under the GNU General Public License v3 (the "**GPL**").

1.2 The Licensee wishes to use the Software in commercial products or services without being subject to the copyleft obligations of the GPL (specifically, the obligation to release derivative works under the GPL).

1.3 This Agreement constitutes a separate, parallel license that allows the Licensee to use the Software without the copyleft obligations of the GPL, in exchange for the payment of a commercial license fee.

2. Order Form

The specific terms of the Licensee's Commercial License are as follows:

Field	Value
Licensee Legal Name	[...insert...]
Licensee Annual Revenue Tier	[Tier 1 / Tier 2 / Tier 3 / Tier 4 / Tier 5] (see Section 4)
Project / Product Name	[...insert specific project or product covered...]
License Scope	Perpetual, worldwide, non-exclusive
Affiliates Covered	[...insert, or "All Affiliates as defined in Section 5.1"...]
Commercial License Fee (EUR)	[...insert based on tier...]
VAT (if applicable)	[...insert...]
Total Amount Due	[...insert...]
Payment Terms	[Net 30 days from invoice date]
Effective Date	[...insert...]
Software Version Covered	[Specific version only / All versions released within X years]
Signed by Licensor	[Name / Title / Date / Signature]
Signed by Licensee	[Name / Title / Date / Signature]

3. Grant of Commercial License

3.1 Commercial License Grant. Subject to the Licensee's compliance with this Agreement and payment of the Commercial License Fee, the Licensor grants to the Licensee a perpetual, worldwide, non-exclusive, non-transferable, non-sublicensable right to:

(a) install, run, and operate the Software in production environments controlled by the Licensee or its Affiliates; (b) integrate the Software into the Licensee's products, services, and internal systems; (c) host the Software as a service, API, or web application for the Licensee's customers and users; (d) modify the Software and create derivative works; and (e) distribute the Software (in original or modified form) to the Licensee's customers as part of the Licensee's products or services.

3.2 No Copyleft Obligation. The Licensee is NOT required to release its derivative works, modifications, or integrated products under the GPL as long as this Agreement is in effect and the Licensee has paid the Commercial License Fee. The Licensee may keep its own source code closed-source and proprietary.

3.3 Reservation of Rights. All rights not expressly granted to the Licensee under this Agreement are reserved by the Licensor. No implied licenses are granted.

3.4 No Trademark License. This Agreement does not grant any rights to use any trademarks, service marks, or trade names of the Licensor, except as strictly required for reasonable attribution of the original software.

4. Commercial License Fee Structure

4.1 Tiered Fee. The Commercial License Fee is determined by the Licensee's Annual Revenue (including all Affiliates) as follows:

Tier	Annual Revenue (Licensee + Affiliates)	Commercial License Fee (EUR)
Tier 1, Hobby / Startup	Less than €100,000	€250
Tier 2, Small Business	€100,000 to less than €1,000,000	€1,000
Tier 3, Mid-Size Enterprise	€1,000,000 to less than €10,000,000	€5,000
Tier 4, Large Enterprise	€10,000,000 to less than €100,000,000	€10,000
Tier 5, Global Enterprise	€100,000,000 or more	€50,000

All fees are stated in Euro (EUR) and are exclusive of applicable value-added tax (VAT) and any other taxes or duties, which shall be borne by the Licensee.

4.2 Per Project, Perpetual. The fee applies per overarching project or product. It is a one-time, perpetual license fee for the specific project identified in the Order Form. Subsequent major versions of the Software may require a new Commercial License at the fee then in effect.

4.3 Tier Adjustment. If the Licensee's Annual Revenue increases such that it would qualify for a higher tier, the Licensee shall pay the difference between the tier fee actually paid and the higher tier fee within sixty (60) days of the end of the fiscal year in which the threshold was crossed.

4.4 Tier Decrease. If the Licensee's Annual Revenue decreases, no refund is owed by the Licensor.

5. Affiliates

5.1 Definition. "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with the Licensee. "Control" means the power to direct the management or policies of an entity, whether through ownership of voting securities, by contract, or otherwise.

5.2 Affiliate Coverage. The Commercial License covers the Licensee and all Affiliates listed in the Order Form (or all Affiliates if so specified). The Licensee is responsible for ensuring that all Affiliates comply with the terms of this Agreement.

5.3 No Shell Games. The Annual Revenue and Commercial Use of all Affiliates are aggregated for the purpose of determining the tier under Section 4. A Commercial Entity may not avoid the Commercial License requirement by licensing the Software through a small subsidiary, holding company, or any other Affiliate.

6. Contractor Loophole Closed

A Commercial Entity may not circumvent the requirement to obtain a Commercial License by hiring independent contractors, freelancers, consultants, or any other natural or legal person to integrate, host, or distribute the Software on its behalf. The Commercial Entity that ultimately benefits from the use of the Software is responsible for obtaining the Commercial License, regardless of which person or entity performed the integration.

7. Patent License

7.1 Patent Grant. The Licensors grants to the Licensee a perpetual, worldwide, non-exclusive, royalty-free, non-transferable, non-sublicensable license under Patent Claims of the Licensors that are necessary to make, use, sell, offer for sale, import, and otherwise transfer the Software, but solely to the extent that any such Patent Claim is necessary to enable the Licensee to exercise the rights granted under Section 3.

7.2 Patent Retaliation. If the Licensee or any of its Affiliates institutes patent litigation against the Licensors or any Contributor, alleging that the Software or a Contribution incorporated into the Software constitutes direct or contributory patent infringement, then any patent license granted to the Licensee under this Agreement shall terminate as of the date such litigation is filed. This retaliation clause does not apply to defensive counterclaims.

8. Fees and Payment

8.1 Invoicing. The Licensors shall issue an invoice to the Licensee upon execution of this Agreement. The Licensee shall pay the invoice in accordance with the Payment Terms set out in the Order Form.

8.2 Late Payment. Any amount not paid by the due date shall accrue interest at the rate of nine (9) percentage points above the base interest rate (Basiszinssatz) published by the Deutsche Bundesbank, calculated on a daily basis from the due date until the date of actual payment.

8.3 No Refund. The Commercial License Fee is non-refundable, except in cases of material breach by the Licensors or where a refund is required by mandatory law.

9. Audit Rights

9.1 Annual Self-Certification. The Licensee shall provide the Licensors with an annual self-certification (in writing, by email is sufficient) confirming the Licensee's current Annual Revenue tier and Affiliate structure.

9.2 Audit Right. The Licensors may, no more than once per calendar year and upon at least thirty (30) days' prior written notice, request reasonable supporting documentation to verify the Licensee's self-certification.

9.3 Confidentiality. The Licensors shall treat all non-public information disclosed by the Licensee under this Section 9 as confidential, and shall use such information solely for the purpose of verifying compliance with this Agreement.

10. Confidentiality

10.1 Confidential Information. Each Party may disclose confidential information to the other Party in connection with this Agreement. The receiving Party shall hold such information in confidence using at least the same measures it uses for its own confidential information of like importance.

10.2 Exceptions. The obligations of Section 10.1 do not apply to information that: (a) is or becomes publicly available without breach of this Agreement; (b) was known to the receiving Party prior to disclosure; (c) is independently developed by the receiving Party without reference to the disclosing Party's information; or (d) is required to be disclosed by law, regulation, or court order.

10.3 Duration. The confidentiality obligations under this Section 10 survive the termination of this Agreement for a period of five (5) years.

11. Term and Termination

11.1 Term. This Agreement commences on the Effective Date and continues in perpetuity unless terminated in accordance with its terms.

11.2 Termination for Material Breach. Either Party may terminate this Agreement upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of receipt of written notice.

11.3 Termination for Patent Litigation. This Agreement terminates automatically upon the Licensee or any of its Affiliates instituting patent litigation against the Licensor as described in Section 7.2.

11.4 Effect of Termination. Upon termination, the Licensee's right to use the Software without GPL obligations ceases immediately. The Licensee must either: (a) cease all use of the Software and destroy all copies; or (b) continue using the Software, but comply fully with the GPL v3 (including its copyleft obligations) for all subsequent use.

11.5 Survival. Sections 9 (Audit), 10 (Confidentiality), 12 (Limitation of Liability), and 13 (Choice of Law) survive termination.

12. Limitation of Liability

12.1 General Cap. The aggregate liability of the Licensor to the Licensee for all claims arising out of or in connection with this Agreement shall not exceed the amount of the Commercial License Fee actually paid by the Licensee under this Agreement.

12.2 Excluded Damages. In no event shall either Party be liable to the other Party for any indirect, incidental, special, consequential, or punitive damages, or for any loss of profits, revenue, data, or business, arising out of or in connection with this Agreement.

12.3 Mandatory Law. The limitations and exclusions in this Section 12 do not apply to liability that cannot be limited under mandatory applicable law, including liability for gross negligence, willful misconduct, or personal injury.

13. Choice of Law and Jurisdiction

13.1 **Choice of Law.** This Agreement is governed by the laws of the **Federal Republic of Germany**, to the exclusion of the UN Convention on Contracts for the International Sale of Goods (CISG).

13.2 **Jurisdiction.** The exclusive place of jurisdiction for all disputes arising out of or in connection with this Agreement shall be the courts of **Berlin, Germany**, provided that the Licensor is domiciled in Germany. If the Licensor is domiciled outside Germany, the Licensor may elect to bring proceedings in the courts of the Licensee's domicile.

14. General Provisions

14.1 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to the Software. The GPL v3 continues to apply to recipients of the Software under the GPL; this Agreement applies only to the Licensee and its Affiliates identified in the Order Form.

14.2 **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable, that provision shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions shall remain in full force and effect.

14.3 **Amendments.** Any amendment to this Agreement must be in writing and signed by both Parties.

14.4 **Assignment.** The Licensee may not assign this Agreement without the prior written consent of the Licensor.

14.5 **No Waiver.** No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver thereof.

14.6 **Notices.** All notices under this Agreement shall be in writing and sent to the addresses set out in the preamble or the Order Form.

14.7 **Electronic Signatures.** Electronic signatures (including PDF signatures and qualified electronic signatures under eIDAS) are accepted.

14.8 **Counterparts.** This Agreement may be executed in counterparts, each of which is deemed an original.

Signatures

By signing below, the Parties acknowledge that they have read, understood, and agreed to be bound by the terms of this Agreement.

For Licensor:

Signature: _____

Name: _____

Title: _____

Date: _____

For Licensee:

Signature: _____

Name: _____

Title: _____

Date: _____

End of Commercial License Agreement